Ram Ji vs State Of U.P. And 3 Others on 7 December, 2019

Author: Ajay Bhanot

Bench: Ajay Bhanot

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HIGH COURT OF JUDICATURE AT ALLAHABAD

Court No. - 37

Case :- WRIT - C No. - 40116 of 2019

Petitioner :- Ram Ji

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gulab Chandra Tiwari,Parbind Kumar Tiwari

Counsel for Respondent :- C.S.C.,Manoj Kumar Yadav

Hon'ble Ajay Bhanot,J.
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The petitioner has instituted an application under Section 67 of the U.P. Revenue Code, 2006, for removal of the encroachment from the public land. The application has been instituted before the competent authority, namely, Sub Divisional Magistrate, Machhalishahar, District Jaunpur.

Sri Gulab Chandra Tiwari, learned counsel for the petitioner contends that no action has been taken on the aforesaid application by the competent authority. Consequently, the respondent no. 4 continues to encroachment upon public land. The path made for the public at large is being obstructed with a sense of impunity.

The learned Standing Counsel submits that the authorities are under obligation of law to discharge their statutory functions within a reasonable period of time.

The State authorities on many occasions, turn blind eye and show utmost apathy to vacate the encroachment on public lands.

Public land in the State of U.P. is most vulnerable to encroachment. Encroachment over such public land is not countenanced by the legislature. The U.P. Revenue Code, 2006, is the response of the legislature to deal with the endemic problem of encroachment over public lands. The purpose of

legislative intent will be defeated in case the statutory authorities do not discharge their statutory functions in a timely manner. Encroachment on public lands causes irreversible damage to public interest.

The courts too have set their face against such encroachment.

The officials charged with the duty, to investigate and clear such encroachment, are under an obligation of law to proceed with dispatch, efficiency and in conformity with the provisions of the statute while dealing with issues relating to encroachment over public lands.

In light of the preceding discussion, the matter is remitted to the respondent no. 2, Sub Divisional Magistrate, Machhalishahar, District Jaunpur.

A writ in the nature of mandamus is issued commanding the respondent no. 2 to execute the following directions:-

> (i). The respondent no. 2 shall notice the respondent no. 4 and any other necessary party on the proceedings instituted against him under section 67 of the U.P. Revenue Code, 2006, for alleged encroachment on public land.
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> (ii). The respondent no. 4 and any other necessary party shall be given a full opportunity of hearing in the proceedings before the final order is passed therein.
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> (iii). All parties are directed to cooperate with the proceedings instituted under Section 67 of the U.P. Revenue Code,2006, pending before respondent no. 2.
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> (iv). The exercise shall be completed, preferably within a period of six months from the date of receipt of a certified copy of this order.
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> (v). In case the respondent no. 4 or any other person is found who have encroached public land, the respondent no. 2 shall forthwith take proceedings to evict the aforesaid encroachments and complete the process of eviction, within a period of two months thereafter.

The writ petition is accordingly disposed of.

Order Date :- 7.12.2019 Vikram